PRINCIPLE I: AI-ASSISTED LANGUAGE EDUCATION SHOULD BE SAFE

Guideline 1

Comply with existing legal requirements and institutional standards

About this guideline

Although competent authorities, both at national and supranational (e.g., European Union) level, are beginning to address some challenges associated with the growth of artificial intelligence (see Section 1.3), the use of AI in education remains largely untested legal territory (Havinga et al., 2024; Holmes & Porayska-Pomsta, 2023). As language teachers cannot yet confidently rely on conventional practice or established legal precedent, caution and informed judgment are necessary to ensure that their practices are compliant with any existing legislation and consistent with the policies and standards of their institution. Some considerations they need to bear in mind relate to terms of service and age restrictions, copyright and intellectual property, and accountability and transparency. Sometimes, institutional policies might provide guidance on some or all of these areas; where such policies exist, teachers should familiarise themselves with them and ensure that their use of AI tools aligns with institutional expectations.

Regarding possible **restrictions**, teachers should ensure that the use of AI tools in language education does not result in students being exposed to content or interactions that are prohibited by local law. Additionally, they should be aware of any restrictions in the legally binding terms of service of the applications they use, such as terms that might require paid plans for institutional or professional use or terms that restrict use to older individuals (typically 13+ or 18+). Institutional procurement or IT policies may also restrict which tools are approved for use with learners. Teachers should also ensure that learners are legally competent to consent to the terms of service (or, alternatively, they should seek permission from their parents or guardians), and that users or their guardians are proficient in the language in which the terms and conditions are stated, in order to ensure informed consent.

The ability of generative AI to generate, remix or translate content such as text, images and videos can also give rise to legal concerns, especially when AI tools are used to produce simplified or translated versions of copyrighted content. While legal provisions regarding **copyright** vary, sometimes permitting limited educational use, language teachers should nevertheless ensure that all AI-generated content used in class is properly attributed and that ownership of intellectual property (including that of the learners) is respected. Where policies on academic integrity or intellectual property exist, which address and identify AI-generated content, these should inform teachers' practice. This can be done, for example, by adding information about the original source and the methods used to adapt the text. Schools and education systems might need to generate policies to ensure consistent application of these practices.

A third set of legal concerns relates to accountability and transparency, or what is sometimes termed the **Fairness, Accountability, Transparency and Ethics** (FATE) requirement (Memarian & Doleck, 2023). Whether planning learning experiences or engaging in assessment, teachers should be aware of the complexities associated with delegating tasks to non-accountable agents, such as agentic AI systems that can complete tasks or make decisions without being held legally, ethically or professionally responsible for the outcomes. In other words, teachers must be aware of their own responsibility for poor learning outcomes, unfair assessments, or inappropriate learning experiences resulting from automated methods. Institutional accountability frameworks, where they exist, should make explicit how responsibility is allocated when AI is involved in consequential decisions about learners.

Did you know?

The 2024 EU Artificial Intelligence Act prohibits the use of AI systems for emotion recognition and real-time facial recognition for monitoring/discipline (Article 5). Tools that manipulate student behaviour or exploit vulnerabilities are similarly not allowed. Any system that creates or expands facial recognition databases from internet images or CCTV is also expressly prohibited. High-stakes activities, including automated grading, admissions and other activities that can have a significant impact on student opportunities are also regulated under Annex III (which classifies such procedures as high-risk) and Articles 9-16. Such activities require strong human oversight and explainability, risk mitigation protocols (Article 9), technical documentation and logging of system behaviour (Articles 11-12), transparency towards users (Article 13), and meaningful human oversight (Article 14). Providers and deployers of high-risk systems are also required to implement clear appeals processes for students and to maintain accountability documentation under Article 16. Additionally, whenever learners interact with any AI system such as a conversational agent or a generative AI application, or engage in similar "limited-risk" activities, educators are required to clearly disclose that the agent is not human, unless this is clear from the context (Article 50).

References

European Parliament and Council of the European Union (2024), *Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence (Artificial Intelligence Act)*, *Official Journal of the European Union*, available at: https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:32024R1689, accessed 12 October 2026.

Havinga B., Holmes W. and Persson J. (2024), *Preparatory study for the development of a legal instrument on regulating the use of artificial intelligence systems in education*, Council of Europe, Strasbourg.

Holmes W. and Porayska-Pomsta K. (eds) (2023), *The ethics of artificial intelligence in education*, Routledge, London.

Memarian B. and Doleck T. (2023), "Fairness, accountability, transparency, and ethics (FATE) in artificial intelligence (AI) and higher education: a systematic review", *Computers and Education: Artificial Intelligence*, Vol. 4, Article 100152, available at: https://doi.org/10.1016/j.caeai.2023.100152.

Competences and reflection questions

1.1 I can understand and use AI tools lawfully

Descriptor: *How fully do the AI tools I use align with local, national and institutional legal frameworks?*

REFLECTION QUESTIONS

- Where can I verify that a tool meets legal or institutional standards?
- Do I check and summarise the main points of a tool's terms before students use it?
- How do I ensure learners (or guardians) understand what they agree to?
- What steps do I take to prevent exposure to illegal or harmful content?

1.2 I can protect intellectual property

Descriptor: *How carefully does the content I (co)generate with AI adhere to intellectual property laws?*

REFLECTION QUESTIONS

- How do I attribute adapted or AI-generated materials? Would my attribution practices hold up if questioned by a colleague, a learner, or a rights-holder?
- How do I safeguard learners' creative work from being reused without consent?
- How am I modelling the intellectual property practices I expect from my learners when they use AI?

1.3 I can maintain responsibility for the use of AI in my teaching

Descriptor: *How do I maintain responsibility as a teacher when delegating tasks to AI applications?*

REFLECTION QUESTIONS

- Why do I need AI to assist in this task, instead of relying on other tools?
- When AI generates feedback, or learning materials, what does my review process look like before that output reaches learners?
- How would I explain my use of AI to learners or colleagues?
- How do I provide space for learners to challenge AI-generated output?
- How am I modelling the transparent use of AI in my teaching?